

In **T. 250/06**, claim 1 of the second auxiliary request related to recombinant DNA molecules comprising a nucleotide sequence encoding a murine delta opioid receptor (DOR), characterised as hybridising under conditions of low stringency to the DNA sequence shown in Figure 5. Appellant II pointed out that Figure 5 of the priority document differed by the addition of seven interspersed bases in the 3' untranslated region. The board indicated that conditions of low stringency were developed for screening molecules which differ somewhat from the probe. It was fully expected that the group of molecules obtained by hybridisation to the DNA of Figure 5 of the priority document and of the patent in suit respectively would not be different.

3.2. Claiming in the subsequent application the invention disclosed in the previous application

The features of the invention disclosed in the priority application must also characterise the invention claimed in the subsequent application.

In **T. 1050/92** the disclosure of the invention in the earlier application provided an adequate basis for replacing the term "Flüssigkeitsabscheidezyklon" used in said application with the more general one "Luft/Flüssigkeits-Trenneinrichtung" in claim 1 of the European application.

In **T. 809/95**, the opponents submitted that the "thin-walled" feature, which was disclosed in the first priority application as essential, was not contained in granted claim 1. The board was of the opinion that granted claim 1 was based on a "collapsible" plastic bottle "produced by the blow-moulding method" which had folds "to facilitate a reduction of volume upon the exertion of a pressure applied to the walls by hand". This description in itself **implied** that the bottle would have to be made from thin-walled plastic flexible enough to be collapsible by hand when empty, as required by independent claim 3 in the first priority application.

In **T. 515/00** the appellant had argued that features pertaining to hardware components relating to the printing process were no longer present in the claim and that there was no basis in the priority document for the deletion of these features. The board referred to **G. 2/98** (OJ 2001, 413, point 8.3 of the Reasons), in which the Enlarged Board had warned against an approach whereby a distinction was made between technical features which were related to the function and the effect of the invention and technical features which were not. Priority could not be acknowledged if a feature was modified or deleted, or a further feature was added. The board further noted that a claim passed the priority test if its subject-matter could be derived from the previous application **as a whole**. It followed that comparing the claim with the corresponding claim of the previous application was not a valid approach to performing the "priority test". The priority test was basically a disclosure test in which the skilled reader could use common general knowledge. If, in the description of the previous application, a distinction was made between features that were essential for the performance of the invention and features which were not, the latter could be deleted from the subject-matter of a claim without losing the right to priority. The omitted hardware components were nowhere presented as essential features in the priority document's description. The skilled reader would not have any reason to assume that they

were essential merely because they were present in claim 1 of the priority document. The board concluded that the priority claimed was valid. This decision was followed in T 321/06.

According to the board in T 134/94, granted claim 1 was not entitled to priority. The priority document disclosed a **process** which worked under specific conditions indicated as features (a) to (d). Requirements (a) and (c) did not appear in granted claim 1; the invention defined by it was not the same as that defined in the priority document. According to the board, the respondent's position that the priority claim should be acknowledged whenever the disclosure of the priority document would destroy the novelty of the claims of the later application or patent ("novelty test") had no basis either in the EPC or in the EPO case law.

In T 552/94 the patent's claim 1 lacked four features which according to the priority document were indispensable for carrying out the invention. Citing T 134/94 and T 1082/93, the board found that without those features the invention according to claim 1 could not be the same as that described in the priority document, and the requirements of Art. 87(1) EPC 1973 were therefore not met.

In T 59/11 the board, assessing the requirement of the "same invention" according to the criteria of G 2/98 (OJ 2001, 413), concluded that there was no basis in the priority document as a whole for the omission of features (a) to (d) from claim 1 in question. Rejecting arguments put forward by the proprietor, the board stated that the existence of a common problem to be solved in a claim under consideration and the document from which its priority was claimed was not decisive in finding a priority validly claimed or not. Nor was an identification of features which were not essential to solving this common problem and their deletion an accepted approach to justify a valid priority claim.

According to T 250/12, following G 2/98 (OJ 2001, 413, points 8.3 and 9 of the Reasons), the essentiality of a feature is not per se an appropriate criterion for judging the validity of a priority claim. Applying the standard laid down in G 2/98 for assessing the "same invention" requirement, the board noted that each of the independent claims of the first priority application contained the contested feature relating to the adjacent location of the third and second contact portions (or their corresponding terminals or apparatus side terminals). Moreover, the priority application as a whole did not provide any basis for considering the above feature as optional. Thus, a skilled person would immediately deduce from the first priority application that the feature formed part of the invention disclosed therein. Since this feature was deleted from the present independent claims, the subject-matter of those claims could not be clearly and unambiguously derived from the first priority application, and the claimed priority was not valid.

See also e.g. T 1890/09.

4. First application in respect of the invention

In principle, only the first application filed in a state party to the Paris Convention or a member of the WTO can form the basis of a priority right. In the EPC this is made clear in Art. 87(1) and (4) EPC.

Therefore, if apart from the application whose priority is being claimed in the subsequent European application, an earlier previous application was also filed, in order to check the validity of the priority claim it must be established whether the invention claimed in the subsequent application was already disclosed in the earlier previous application – see in this chapter II.D.4.1. Decisions also focusing on the identity of the applicants are dealt with in this chapter II.D.4.2.

In T 477/06 the board held first that since Euro-PCT application D8 had been deemed withdrawn due to non-payment of the designation fees (R. 23a EPC 1973), it was not prior art under Art. 54(3), (4) EPC 1973 for the application in suit. However, it had been filed by the same applicant and earlier than the priority application. In view of the fact that claimed subject-matter was anticipated by this earlier application, the priority application was not the first application within the terms of Art. 87(1) and (4) EPC 1973 (cf. Art. 8(2)(b) PCT), so that the priority claim was not valid. Hence, the application in suit enjoyed priority only from the date of filing and D8 was prior art under Art. 54(2) EPC 1973. See also T 1222/11 in chapter II.D.4.1. below.

For the case of a priority held invalid because it was **not** shown, for the purpose of Art. 87(4) EPC 1973, that at the date of filing of the application from which priority was claimed, a previous first application filed by the applicant in respect of the same invention had been **withdrawn**, see T 1056/01 (reported in chapter III.G.4.3.5).

4.1. Identity of invention

To establish whether the invention claimed in the subsequent European application was already disclosed in the earlier previous application, the same principles have to be applied as when establishing identity of invention between the application forming the basis of priority and the application claiming priority. The question is whether the person skilled in the art could derive the subject-matter of the claim of the subsequent application directly and unambiguously, using common general knowledge, from the earlier previous application or only from the later one (cf. G 2/98, OJ 2001, 413).

In T 323/90 the board concluded that the alleged first application disclosed a different invention from that in the European application and the application from which priority had been claimed: the claimed process (for increasing the filling power of tobacco lamina filler) differed as regards both the moisture content of the tobacco for processing and the first step in the process.

In T 400/90 priority had been claimed from a US application in respect of a European application concerning an electromagnetic flowmeter. According to the opponents, an earlier US application filed by the same applicant outside the priority period disclosed all

the features contained in the European application with the exception of the use of saddle-shaped coils; however, the latter were already known and used frequently. In the board's opinion, the question to be answered was **whether the use of saddle-shaped coils had been disclosed** in the earlier US application, and **not whether it was obvious** to use such coils in place of the magnets disclosed in the earlier application. The board concluded that the inventions claimed in the US applications were different and priority had rightly been claimed from the later application because, according to the teaching of the earlier application, coils of any shape could be used, whereas according to the teaching of the priority document saddle-shaped coils had to be used.

In T 184/84 the Japanese application from which priority was claimed in the European patent application but also an earlier Japanese application claimed a method of producing a single crystal of ferrite. The starting materials were defined differently in the two Japanese applications. The method disclosed in the later application and the European application was clearly more advantageous than that forming the subject-matter of the earlier one. The board held that the **significant differences in properties** were indicative of the presence of different materials and therefore found that the earlier Japanese application was not the first filing of the invention claimed in the European patent application. It based its finding on T 205/83 (OJ 1985, 363), which stated that the novelty of products prepared using a modified process could be established by the fact that according to an empirical principle in chemistry, a product's properties were determined by its structure, so that differences in the properties of products indicated a structural modification.

The subject-matter of the patent in case T 107/96 contained the feature "angle of contact greater than 120°", which feature was disclosed in P2, the later of two previous US applications. In P2 a particular advantageous effect was also attributed to the large extent of the said "angle of contact". The earlier previous US application P1 was totally silent about the aforementioned feature "angle of contact" and its advantageous effect. However, the figures of P1 represented **diagrammatic** and schematic drawings. The board concluded that therefore, and in line with the established jurisprudence of the boards of appeal, they could not serve as a basis for determining the extent of a minimum "angle of contact" because dimensions obtained merely by measuring a diagrammatic representation of a document did not form part of the disclosure. Hence, the said feature "angle of contact greater than 120 °", was not disclosed in P1 but only in P2.

In T 449/04 the board referred to the Enlarged Board's narrow or strict interpretation in G 2/98 (OJ 2001, 413) of the concept of the "same invention" in Art. 87(1) EPC 1973 and concluded that the invention disclosed in the applicant's earlier application D1 was not the "same invention" as that disclosed in the priority application PR. With regard to a **comparative example** in D1, the composition of which fell within the elemental ranges claimed in the application-in-suit as well as in application PR, the board emphasised that the "same invention" considered in Art. 87(1) EPC 1973 did not encompass the comparative example(s), which were clearly and definitely **excluded** from the scope of the invention in D1. Having regard to the strict and narrow interpretation of the term "the same invention", this term was focused on what constituted the elements of the invention.

In T.1222/11 claim 1 had been amended to include six disclaimers for the purpose of restoring novelty over D4b, an earlier international (Euro-PCT) application of the same applicant, which had been published within the priority interval. The board found that the combination of features defined in positive terms in claim 1 (i.e. without any disclaimer) could not be distinguished from the disclosure of D4b and was not entitled to the claimed priority as far as it concerned the subject-matter already disclosed in D4b (Art. 87(1), (4) EPC). The compositions of D4b were therefore prior art under Art. 54(2) EPC. As the anticipatory disclosure of D4b was not an accidental anticipation (cf. G.1/03, OJ 2004, 413), the disclaimers based on it were not allowable under Art. 123(2) EPC. For further mention of this decision see chapter II.D.5.3.1.

In T.282/12 the board held that, for reasons of consistency, the rationale of decision G.1/15 (OJ 2017, A82 – concept of **partial priority**) must also apply in the context of deciding whether an application from which priority is claimed is the first application within the meaning of Art. 87(1) EPC. Indeed, just as a priority application and a patent claiming priority therefrom may partially relate to the same invention, the priority application and an earlier application filed by the same applicant may also do so. In that case, the priority application would be the first application in respect of only that part of the invention which is not the same as in the earlier application. Here, the board found that the earlier application filed by the applicant disclosed a range which was encompassed within the range of the priority document. Therefore, for that sub-range the priority document was not the first application. See also the summary of this decision in chapter II.D.5.3.3.

In T.1662/14 document D2 was a Euro-PCT application claiming priority from D3, an application of the predecessor in title of the applicant of D2. D3 had the same technical content as D2 and was filed before the date of filing of the patent in suit (which claimed no priority). D11 was also an application of the predecessor in title of the applicant of D2 and had the same technical content as the original application from which the patent in suit was derived. D3 was a continuation-in-part of D11. Hence D11 had left some rights outstanding within the meaning of Art. 87(4) EPC. It followed that D11, and not D3, was the first application in respect of the invention which it disclosed, and D2 could not validly claim priority from D3 for that invention. However, D2 contained more specific elements, i.e. it disclosed a system comprising additional technical features not disclosed in D11. As a consequence, D11 was not the first application for the more specific system, and the priority claim of D2 was valid in respect of such a system, for which D3 was the first application. That specific system belonged to the state of the art according to Art. 54(3) EPC and anticipated the subject-matter of claim 1.

4.2. Identity of applicant and joint applicants approach

In T.5/05 the opposition division had concluded that neither of the two claimed priority applications qualified as the first application within the meaning of Art. 87(1) and (4) EPC 1973 on the grounds that two inventors and part of the subject-matter were the same as in an earlier previous application. As the filing date of that application was more than twelve months prior to the filing date of the contested patent and the application had been "made public", the same invention of the same inventors could no longer serve as a basis for claiming priority.